



CHAPTER 30.

An Act to amend the Marriage Notice (Scotland) Act, 1878, in its application to persons engaged in war service. [27th June 1940.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Where one of the parties to a regular marriage intended to be celebrated or contracted in Scotland is engaged in war service, the other party may, subject to and in accordance with the provisions of section seven of the Marriage Notice (Scotland) Act, 1878, give notice of the intended marriage as if the parties were residing in different parishes or districts in Scotland, and the provisions of that Act relating to notice of intended marriages and to certificates of due publication thereof shall apply accordingly with the substitution, however, for the words “seven consecutive days” and “seven clear days” occurring in sections eight and nine, of the words “one day” and “one clear day” respectively.

Amendment
of 41 & 42
Vict. c. 43
in its
application
to persons
engaged
in war
service.

(2) A certificate of due publication of notice of the intended marriage granted by virtue of the foregoing subsection shall be of the like force and effect in all respects as a certificate applicable to both parties granted in pursuance of a notice given by both parties.

Interpre-
tation.**2.—(1)** In this Act—

the expression “war service” means—

(a) service during the war period (whether within or outside the United Kingdom) in any of His Majesty’s naval, military or air forces or the nursing service or other auxiliary service of any of those forces;

(b) any other service during the war period (whether within or outside the United Kingdom) in any British ship; and

the expression “war period” means the period during which the Emergency Powers (Defence) Act, 1939, is in force.

2 & 3 Geo. 6.
c. 62.2 & 3 Geo. 6.
c. 81.

(2) For the purposes of this Act, a person on whom an enlistment notice has been served in pursuance of the National Service (Armed Forces) Act, 1939, shall, during the period between the service of such notice and the date on which he is thereby required to present himself, be deemed to be serving in such one of His Majesty’s Forces as is therein specified.

Short title.

3. This Act may be cited as the Marriage (Scotland) (Emergency Provisions) Act, 1940.

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